

WEAPONS

Loudoun County Public Schools (LCPS) students and employees are expected to report immediately to an LCPS official whenever they observe or otherwise become aware of the presence of a weapon on LCPS property or at a LCPS-sponsored activity. Doing so serves to protect the well-being of other LCPS students and employees.

This policy applies to students at all grade levels. Except under the specified circumstances set forth in Section F below, the possession or use of any weapon (loaded or unloaded, operable or inoperable) by a student while on LCPS property, at an LCPS-sponsored activity, or while traveling to or from LCPS property or an LCPS-sponsored activity is strictly prohibited. For the purpose of this policy, the use of any weapon as defined below includes, but is not limited to, brandishing such weapon, or otherwise using such weapon to threaten, intimidate, injure or harm another person.

The term "weapon" is intended to be construed broadly and includes any instrument or device which, by its design or use, is capable of causing injury, harm, or threat of injury or harm to another person. For the purposes of determining appropriate sanctions for violations of this policy, weapons are classified as either Category A, Category B, Category C or Category D.

A. Category A Weapons. Category A weapons are those weapons that a student is prohibited from possessing on LCPS property or at an LCPS-sponsored activity, in accordance with Virginia Code § 22.1-277.07. Category A weapons include:

1. Any pistol, revolver or other weapon designed or intended to propel a missile of any kind by action of an explosion of any combustible material;
2. Any destructive device, as defined in Virginia Code § 22.1-277.07.E, including any explosive, incendiary, or poison gas, bomb, grenade, rocket, missile, mine or other similar device;
3. Any firearm muffler or firearm silencer;
4. Any pneumatic gun, as defined in Virginia Code § 15.2-915.4.E, including a BB gun; paintball gun; pellet gun; or any implement, designed as a gun, that will expel a BB or a pellet by action of pneumatic pressure; and
5. Any weapon, including a starter gun, that will, or is designed or may readily be converted to, expel single or multiple projectiles by the action of an explosion of a combustible material or the frame or receiver of any such weapon.

B. Category B Weapons. Category B weapons are those weapons (other than firearms) that a student is prohibited from possessing on LCPS property or at an LCPS-

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sponsored activity, in accordance with Virginia Code § 18.2-308.1. Category B weapons include:

1. Any device that emits a momentary or pulsed output, which is electrical, audible, optical or electromagnetic in nature and which is designed to temporarily incapacitate a person (i.e., “stun weapon”);
2. Any knife (e.g., dirk, switchblade knife, bowie knife, stiletto knife, ballistic knife), except a knife having a blade that measures less than three inches;
3. Any machete or straight razor;
4. Any sling bow, spring stick, metal knucks/brass knuckles or blackjack;
5. Any flailing instrument consisting of two or more rigid parts connected in such a manner as to allow them to swing freely (e.g., nun chuck, fighting chain)
6. Any disc, of whatever configuration, having at least two points or pointed blades which is designed to be thrown or propelled (e.g., throwing star, oriental dart, shuriken); and
7. Any weapon of like kind as those enumerated in this subsection.

C. Category C Weapons. Category C weapons are instruments, devices or substances that a student is prohibited from possessing on LCPS property or at an LCPS-sponsored activity, and which could be used to threaten, intimidate, injure, or harm another person. Category C weapons include but are not limited to:

1. Any knife having a blade that measures less than three inches;
2. Any instrument or device that has a blade designed to cut (e.g., a razor blade or X-acto knife);
3. Any gun or device designed to expel a projectile by any non-pneumatic or non-explosive action, including those using trigger, battery power or tension action (e.g., slingshots, bows, and spring-loaded or battery-powered shooting devices [other than toys]);
4. Any chemical or chemical compound, including pepper spray or mace, that is designed to produce an adverse effect on the normal functions of the human body;

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5. Any live ammunition, cartridge, or blank ammunition;
6. Any tool (e.g., hammer, screwdriver, shears);
7. Any blunt instrument (e.g., bat, mallet);
8. Any instrument, device or substance that looks like a weapon (i.e., a “look-alike” weapon);
9. Any instrument or device, not included in Category A or Category B, which is designed to threaten, intimidate, injure or harm another person.

D. Category D Weapons. Category D weapons are instruments or devices that are generally permissible on LCPS property and at LCPS-sponsored activities but have been used to threaten, intimidate, injure, or harm another person. Category D weapons may include but are not limited to metal water bottles, chairs, pointed scissors, and writing utensils.

E. Toy Weapons. Toy weapons are items inappropriate for school and generally prohibited on LCPS property or at LCPS activities. However, a student’s possession or use of a toy weapon shall not be considered a violation of this policy except for the following:

1. Any toy weapon that looks like a weapon (i.e., a “look-alike” weapon) shall be considered a Category C weapon.
2. Any toy shooting device that is spring loaded or battery powered and is used to threaten, intimidate, injure or harm another person shall be considered a Category D weapon.

F. Exceptions. An instrument or device may not be considered a weapon under the above categories, depending on the appropriateness of its use and provided that the possession or use of such instrument or device is approved by an authorized LCPS administrator. Examples include:

1. Any instrument or device that is a part of the LCPS curriculum or any LCPS-sponsored program or activity.
 - a. This includes a pneumatic gun or other firearm that is used within the Junior Reserve Officers Training Corps (JROTC) program in conducting marksmanship training when such training is a normal element of such program. Such marksmanship training shall occur

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only at a location or locations approved by the Superintendent or designee.

2. Any instrument or device that is a part of the curriculum, program or activity of any organization permitted by LCPS to use its premises, where such organization provides advance notification to the building or other relevant LCPS administrator of the use of such instruments or devices that could otherwise be considered weapons under the above categories as part of the organization's curriculum, program or activity.

3. Any tool, such as a knife, customarily used for food preparation or service, that is being used for such purpose.

G. Penalties for Violation.

1. Category A Weapons Violation. Any student who violates this policy with respect to a Category A weapon shall be suspended for ten days and referred to the Office of School Administration (OSA), which serves as the Superintendent's designee in matters related to student discipline. OSA will conduct a hearing and consider the appropriateness of a recommendation for expulsion for a period of not less than one year.

a. Special Circumstances. OSA may determine, based on the facts of a particular case, that special circumstances exist, and no disciplinary action or another disciplinary action or another term of expulsion is appropriate. For the School Board's awareness, OSA will notify the School Board of all instances where OSA deems special circumstances apply and where OSA has determined that no disciplinary action or another disciplinary action or another term of expulsion is appropriate.

2. Category B Weapons Violation. Any student who violates this policy with respect to a Category B weapon shall be suspended for ten days and referred to OSA for consideration of further disciplinary action.

3. Category C Weapons Violation.

a. Any student who possesses a Category C weapon in violation of this policy shall be suspended for up to ten days and may be referred to OSA for consideration of further disciplinary action.

b. Any student who uses a Category C weapon in violation of this

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policy to threaten, intimidate, injure, or harm another person shall be suspended for ten days and referred to OSA for consideration of further disciplinary action.

4. Category D Weapons Violation.

- a. Any elementary school student who uses a Category D weapon in violation of this policy to threaten, intimidate, injure, or harm another person shall be suspended for up to ten days and may be referred to OSA for consideration of further disciplinary action.
- b. Any secondary school student who uses a Category D weapon in violation of this policy to threaten, intimidate, injure, or harm another person shall be suspended for five to ten days and may be referred to OSA for consideration of further disciplinary action.

H. Safe Harbor Provision. The accidental or inadvertent possession of a weapon by a student, either brought onto or found on LCPS property or at an LCPS-sponsored activity, shall not constitute a violation of this policy, provided that the student immediately reports the same to a teacher or administrator upon discovery thereof by such student and before it is discovered or seen by LCPS staff or by another student. In every instance that Safe Harbor is invoked there shall be a parent conference which shall be documented in the Student Information System. No student shall benefit from the Safe Harbor provision more than once in any two calendar year period.

I. Appeal Procedure. Any suspension from school of ten or fewer days may be appealed in accordance with Regulation 8220.1, Procedures for Short-Term and Long-Term Suspension. Any long-term suspension, reassignment, exclusion, or recommendation for expulsion may be appealed in accordance with Policy 8230, Procedures for Student Disciplinary Appeals to School Board.

J. Reporting to Law Enforcement. Notwithstanding the foregoing, where state law requires that a student's possession of a weapon be reported to law enforcement officials, such shall occur.

K. Students with Disabilities. Students with disabilities are subject to the provisions of this policy and will be disciplined in accordance with Regulation 8220.3, Disciplinary Procedures for Students with Disabilities.

L. Law and Policy. This policy implements the Gun-Free Schools Act (see Virginia Code § 22.1-277.07), as well as LCPS's independent prohibition of student possession or use of all weapons, except where expressly approved by an authorized LCPS

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administrator as set forth in Section F above. LCPS's own policy on weapons is authorized by the Virginia Code, including § 22.1-277.07:1.

[Former Policy 8-32]

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Legal Refs: Code of Virginia §§ 22.1-277.07, 22.1-277.07:1, [15.2-915.4.E](#), 18.2-308.1; [Gun-Free Schools Act](#)

Cross Refs: Regulation 8220.1, Procedures for Short-Term and Long-Term Suspension; Regulation [8220.3](#), Disciplinary Procedures for Students with Disabilities; Policy [8230](#), Procedures for Student Disciplinary Appeals to School Board